

25TRCV02875 25TRCV02875

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C08%2F14%2F2026

Source SHA-256: bf1835bdaa98f0d912ebd674ae8c5b5184a531b70a3185d20f88f7fa7bba2ef3

Case Number: 25TRCV02875 Hearing Date: August 14, 2026 Dept: B

Moving Parties: Defendant City of Rancho

Palos Verdes

Responding

Party: Plaintiff Joseph Mercado

Demurrer to First

Amended Complaint

The Court considered the moving, opposition, and reply papers.

RULING

The

demurrer to the first cause of action in the FAC is OVERRULED.

Defendant

City is ordered to file an answer within twenty days.

BACKGROUND

On August 25, 2025, plaintiff Joseph Mercado filed a complaint against City of Rancho Palos Verdes, Caltrans, and People of the State of California for (1) premises liability based on dangerous condition of public property and (2) general negligence.

On February 10, 2026, plaintiff filed requests for dismissal as to Caltrans and People of the State of California.

On May 14, 2026, the Court sustained with leave to amend Defendant City of Rancho Palos Verdes' demurrer to the first cause of action and sustained without leave to amend as to the second cause of action.

On June 2, 2026, plaintiff filed a FAC for (1) dangerous condition of public property and (2) negligence against Does.

On June 9, 2026, plaintiff filed amendments to complaint designating Hout Construction Services as Doe 1 and Hardy & Harper as Doe 2.

LEGAL

AUTHORITY

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747. Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." *Gressley v. Williams* (1961) 193 Cal. App. 2d 636, 643-44.

DISCUSSION

Defendant

City of Rancho Palos Verdes demurs to the first cause of action in the FAC on the grounds that it fails to state sufficient facts to constitute a cause of action.

First cause of action for dangerous condition of public property

“Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” Gov. Code §835.

A

“dangerous condition” is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” Gov. Code §830(a).

“[A] claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition.’ A plaintiff’s allegations, and ultimately the evidence, must establish a physical deficiency in the property itself. A dangerous condition exists when public property ‘is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,’ or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” Cerna v. City of Oakland (2009) 161 Cal. App. 4th 1340, 1347-38 (citations omitted).

The FAC alleges that on December 7, 2024, plaintiff was driving an electrical unicycle on Palos Verdes Drive South between Peppertree Drive and Narcissa Drive in Rancho Palos Verdes when a dangerous condition of public property caused him to crash. The City of Rancho Palos Verdes and Does 1-20 are liable for the dangerous condition of public property at the location where the incident occurred

pursuant to Gov. Code §835 by owning the public property where the incident occurred and defendants having actual and constructive notice of the existence of the dangerous condition in sufficient time prior to the injury to have corrected it and the condition was created by the employees of defendants. FAC, ¶6.

The dangerous condition of public property that proximately caused plaintiff's crash consisted of several components: (1) the downed traffic cone was lying blocking part of the street and obstructing traffic (as seen in Exhibit D), (2) the placement of the traffic cone by City employees/agent was partially in the traffic lane, partially on the white line between a bike lane and the traffic lane and partially in the

bike lane (blocking entry into the bike lane) and negligently placed there by employees/agents of the City of Rancho Palos Verdes, (3) the traffic cone was negligently placed when it was originally placed on the at/near the white line dividing what appears to be a bike lane with the bike lane next to the sidewalk and someone on a non-auto would likely go into the space to avoid cars given the narrowness of the traffic lane, (4) there was a lack of visibility and no apparent lighting at the location and the fact that the cone was not near other cones made it harder to see, (5) the placement of the cone made it extremely likely it would get knocked down by cars or bicycles and when it got knocked down would be harder to see, (7) there was no warnings or visible signs to warn bicycles or persons on electric bikes, unicycles, etc. about using the road given the lack of lighting, narrowed lanes, and traffic cones, (8) there was failure by

city employees/agents to inspect the location reasonably often and make sure any traffic cones that posed a hazard be moved or replaced, and (9) there does not appear to be any purpose in putting the cone where it was put, it serves no apparent function, and it was a dangerous hazard, particularly to someone on a bicycle—motorized or not—or an electric unicycle like plaintiff was on. Id. at ¶7.

To sum up: plaintiff alleges a cone was placed by an agent/employee of the City within an active lane of travel and partially within a bicycle lane at night, in an area lacking adequate illumination, creating an unexpected obstruction to foreseeable roadway users—including bicyclists and operators of electric unicycles. The cone was positioned in a manner that obstructed travel and created a substantial risk of injury to foreseeable users who acted with due care. The cone was down when it

was hit by plaintiff but that was an extremely likely consequence of putting the cone in such a bad spot and even when it was standing up it posed a substantial risk of injury to foreseeable users who acted with due care, particularly anyone on a bike or unicycle. This is why the cone at that location posed a dangerous condition of

public property. Id., ¶8.

The FAC further alleges that there is video of the incident, and screenshots are attached to the FAC. Id., ¶9.

As a proximate result of the dangerous condition of public property, plaintiff sustained injuries, which were a reasonably foreseeable risk of that type of dangerous condition. Id., ¶10.

Defendant argues that the allegations are insufficient because plaintiff does not allege that the property was physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself, and that an allegation about a cone being “down” on the road somewhere along a 0.3 mile stretch of road does not satisfy these requirements. Defendant contends that plaintiff cannot describe, with certainty, where the cone was laying. Defendant further argues that plaintiff “fails to elaborate as to how exactly” plaintiff “crashed,” because “[s]imply hitting a warning cone while riding a unicycle does not inherently mean public property was ‘dangerous.’” Defendant asserts that warning cones are, by definition, safety devices used to mark hazards. Defendant also argues that plaintiff fails to allege specific facts regarding how the City had either actual or constructive notice of a random cone located somewhere along the road, how long it was there, or how it posed a danger to someone using due care.

In opposition, plaintiff argues that the allegations are sufficient. Plaintiff asserts that the dangerous condition need not be a permanent physical feature of the property. As examples, plaintiff cites to *Hacala v. Bird Rides, Inc.* (2023) 90 Cal. App. 5th 292 (illegal parking of scooters); *Kim v. County of Monterey* (2019) 43 Cal. App. 5th 312 (placement of sandbags). Plaintiff also argues that he has sufficiently alleged that the location of the incident was a dangerous condition of public property at para. 9.

Plaintiff contends that he alleges that the cone was a completely unexpected obstruction in the road where no reasonable person would expect it to be. Plaintiff further argues that he pled with certainty as to where the cone was laying at para. 7. Moreover, plaintiff asserts, he has adequately alleged that defendants created the condition or had actual/constructive notice.

In reply, defendant reiterates its argument that plaintiff fails to plead facts, with particularity, to establish the exact dangerous condition of public property and that plaintiff fails to identify the specific defect, its precise location, or how the City had notice.

The Court finds that the allegations are sufficient to meet the elements. Plaintiff alleges in what manner the condition constituted a dangerous condition, the location, and that an agent/employee created the dangerous condition.

The demurrer is OVERRULED.

ORDER

The demurrer to the first cause of action in the FAC is OVERRULED.

Defendant
City is ordered to file an answer within twenty days.

Plaintiff is to give notice of ruling.